

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 7, 2026
8:30 a.m./1:30 p.m.

9. TODD STANLEY V. HANNAH COLE

24FL0221

Respondent filed an RFO on February 2nd seeking to have Petitioner deemed a vexatious litigant. The RFO and all other required documents were served on February 4th.

While Respondent concedes that a party represented by counsel cannot be deemed a vexatious litigant and she notes her belief that Petitioner was represented by counsel as of March 13th she is still seeking to have the court issue the vexatious litigant designation.

Parties appeared for the hearing on March 26, 2026. Petitioner requested the matter be continued to allow additional briefing on the request. The court set a briefing schedule and stayed its tentative ruling on the vexatious litigant portion of the ruling only. The court set a review hearing for May 7, 2026.

Petitioner filed a Brief on April 24, 2026. It was served on Respondent and Minors' Counsel the same day. Petitioner objects to the vexatious litigant designation and argues that Petitioner's filings do not come within any of the provisions of Code of Civil Procedure section 391.

Respondent filed a Responsive Brief on April 27, 2026. It was served on Petitioner the same day. The court does not have a Proof of Service showing Minors' Counsel was properly served. As such, the court cannot consider the Responsive Brief.

Minors' Counsel has not filed a Brief on the issue of vexatious litigant.

The purpose of the vexatious litigant statute is to curb the misuse of the judicial process by self-represented litigants who repeatedly file unmeritorious litigation, or motions, or who repeatedly attempt to relitigate issues that have already been decided by the court. Shalant v. Girardi, 51 Cal. App. 4th 1164 (2011). To be declared a vexatious litigant the self-represented party must meet at least one of four statutory definitions. These definitions include an individual who "...repeatedly relitigates or attempts to relitigate, in propria persona, either (1) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined;" or one who "repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay." Cal. Civ. Pro. § 391(b)(2) & (b)(3). A finding of as few as three motions on the same issue has been upheld as grounds for a

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vexatious litigant ruling. Goodrich v. Sierra Vista Reg'l Med. Ctr., 246 Cal. App. 4th 1260 (2016).

After re-reviewing the court's file, the court finds the following. Since March of 2024, Petitioner has filed six RFOs and a Request for Domestic Violence Restraining Order (DVRO). One RFO was filed by his attorney, therefore, the court is not considering that RFO in its vexatious litigant analysis.

Regarding the remaining filings, the court has reviewed each and they quite frankly do walk the line over whether they were filed with the intent to harass Respondent (who is a protected party under the DVRO) or to cause delay and litigate or relitigate issues that were finally determined by the court. That said, the court does recognize that the majority of the RFOs at issue were filed immediately following the move-away hearing during the brief period of time that he was pro per. Recognizing that, the court notes that Petitioner is now represented by counsel. Accordingly, the court is hopeful that the repeated filings on the same issues and without legal basis will subside, therefore, the court is not granting the request to deem Petitioner a vexatious litigant at this time.

Petitioner is admonished, for the second time, to refrain from filings that do not have sound basis in law or are intended solely to harass Respondent or delay proceedings. The request for vexatious litigant status is being denied without prejudice. As such, Petitioner is cautioned that he may be deemed a vexatious litigant in the future if the issue comes before the court again.

Minors' Counsel filed a Statement of Issues and Contentions on April 20, 2026. Petitioner and Respondent were served the same day.

Petitioner filed a Declaration in Rebuttal to the Family Code section 3044 Presumption on April 27, 2026. The court is unable to locate a Proof of Service regarding this document. Therefore, it has not been considered.

Respondent filed an Updating Declaration on April 27, 2026 along with an Updating Declaration of Counsel. These documents were not served on Minors' Counsel. As such, they have not been read or considered.

The court notes, there is no current review hearing regarding custody or parenting time, nor is there a pending motion to modify the court's current orders regarding custody, parenting time, or the Family Code section 3044 presumption. Those matters were all ruled on at the March 26, 2026 hearing, where the court adopted its tentative ruling as set forth.

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All prior orders remain in full force and effect.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #9: THE REQUEST TO DEEM PETITIONER A VEXATIOUS LITIGANT IS DENIED WITHOUT PREJUDICE. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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10. JENNIFER STILWELL V. STEPHEN CICCARELLI

PFL20180525

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on February 10, 2026, to (1) set child custody and visitation, (2) confirm and enforce its continuing and exclusive jurisdiction over this matter, (3) stay all proceedings in the Tribal Court (Pechanga Tribal Court, Case No. ICW-035-25) pending further order of this court; and (4) prohibit the parties from initiating, participating in, or seeking orders from any other court regarding the parties' minor children. The filing of the RFO prompted the court to refer the parties to a CCRC session set for March 12, 2026.

Proof of service filed February 10, 2026, shows the RFO was electronically served upon Respondent on February 09, 2026.

Respondent filed no Responsive Declaration.

The court is in receipt of a CCRC report indicating that neither parent appeared for the appointment as scheduled.

Due to the Petitioner's failure to appear at the scheduled CCRC session, the court drops the matter from the calendar without prejudice.

TENTATIVE RULING #10: DUE TO THE PETITIONER'S FAILURE TO APPEAR AT THE SCHEDULED CCRC SESSION, THE COURT DROPS THE MATTER FROM THE CALENDAR WITHOUT PREJUDICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6275 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.